

Court No. - 39

Case :- WRIT - C No. - 2376 of 2019

Petitioner :- Prem Singh

Respondent :- Chief Managing Director U P Power Corporation And 2 Others

Counsel for Petitioner :- Muktesh Kumar Singh, Rakesh Kumar Yadav

Counsel for Respondent :- Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Muktesh Kumar Singh, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondents.

The petitioner in the writ petition is seeking quashing of the demand notice dated 01.08.2018.

However, he has not challenged the recovery citation dated 15.09.2018. Counsel for the petitioner prays for and is granted one week time for filing appropriate amendment application challenging the recovery citation dated 15.09.2018.

Put up as fresh on 31.01.2019.

Order Date :- 24.1.2019

N Tiwari

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Counsel for Respondent :- Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Rakesh Kumar Yadav, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondents.

Civil Misc. Amendment Application supported by an affidavit is taken up.

Learned counsel for the respondents have no objection if the amendment application is allowed.

Amendment application is allowed.

Let the necessary amendment be carried out during the course of the day.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 01.08.2018 whereby a recovery of Rs.95,657/- is sought to be made from the petitioner.

The petitioner disputes the bill, which has been issued to him. If that be the position he has a remedy by filing his objection before the respondent no. 3- Executive Engineer, Electricity Distribution Section-III, Dakshinanchal Vidyut Vitran Nigam Ltd. Mainpuri as per the provisions of Para 6.5 of the Electricity Supply Code, 2005.

We, therefore, dispose of this writ petition with a direction that if the petitioner appears before the respondent no.3-Executive Engineer, Electricity Distribution Section-III, Dakshinanchal Vidyut Vitran Nigam Ltd. Mainpuri with his representation as well as certified copy of this order by 13.02.2019 at 11.00 A.M., the respondent no.3 shall consider and decide the said representation in accordance with law within a further period of 15 days.

Subject to the petitioner complying with the directions as given above, the impugned citation dated 01.08.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.3.

Order Date :- 1.2.2019

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